Eswap Protocol: Shariah Compliance Executive Case

A Definitive Technical & Legal Justification

To construct the "maximum proof" **Al-Adillah al-Qat'iyyah** for the Shariah compliance of Eswap, we must align the protocol's technical architecture directly with the primary sources of Islamic Law (Qur'an & Sunnah) and the established **Fiqh Maxims**.

1. The Primary Pillar: The "Aydan bi-Ayd" (Hand-to-Hand) Requirement

> ***The Proof (Dalil):*** *The Prophet (ﷺ) said:*
>
> الذهب بالذهب والفضة بالفضة... مثلا بمثل يدا بيد... فإذا اختلفت هذه الأصناف فبيعوا كيف شئتم إذا كان يدا بيد
>
> *"Gold for gold, silver for silver... like for like, hand to hand. If these classes differ, then sell as you wish, provided it is hand to hand." (Sahih Muslim).*

The Technical Adillah: In conventional margin, "possession" is often a delay or a ledger entry. In Eswap, the exchange happens via Uniswap V3 in a single **Atomic Transaction**.

The Verdict: Because the swap occurs at the exact moment the position is opened, Taqabud (Immediate Possession) is achieved. The "Hand-to-Hand" requirement is fulfilled digitally through the blockchain's instant finality.

2. The Absolute Prohibition of Riba (Interest)

> ***The Proof (Dalil):***
>
> وَأَحَلَّ اللَّهُ الْبَيْعَ وَحَرَّمَ الرِّبَا
>
> *"But Allah has permitted trade and has forbidden interest (Riba)." (Qur'an 2:275).*

The Technical Adillah: Every traditional leverage protocol (Aave, Compound, dYdX) uses an interest-rate model where a "Borrower" pays a "Lender" a percentage for the duration of the loan.

The Verdict: Eswap operates with a 0% Interest Rate. Whether the position is held for a day or a decade, the user owes exactly the principal amount back to the pool. This eliminates Riba al-Nasi'ah (Interest from Delay) entirely.

3. The Validation of "Ujrah" (Service Fee) over "Qard" (Loan)

> ***The Proof (Dalil):*** *The Fiqh Maxim states:*
>
> كل قرض جر نفعاً فهو ربا
>
> *"Every loan that attracts a benefit is Riba." (Kullu qardin jarra naf'an fahuwa riba).*

The Technical Adillah: Eswap does not profit from the act of lending. Instead, it charges a **Trade Fee** at the point of execution. This is categorized as **Ujrah** (Payment for Labor/Service).

The Verdict: The protocol is a service provider, not a money-lender. Charging a fee for the service of facilitating a trade is Halal under the rules of Ijarah.

4. Verification of Ownership (Al-Milkiyah) via NFT

> ***The Proof (Dalil):*** *The Prophet (ﷺ) forbade selling what you do not own (Bay' ma la yamlika).*

The Technical Adillah: Eswap represents every position as a unique **NFT (ERC721)**. In modern Islamic finance, this is called **Sard al-Milkiyah** (Digital Title of Ownership).

The Verdict: The trader is the owner of an NFT that has a direct claim on the underlying assets. Since the user "owns" the NFT, they have the legal right to close the position for profit (Bay' al-Mulkiyya).

5. Elimination of Gharar (Uncertainty) via Oracle Transparency

> ***The Proof (Dalil):*** *The Prophet (ﷺ) forbade the sale of items of excessive uncertainty (Gharar).*

The Technical Adillah: Uncertainty in trading often comes from hidden prices. Eswap uses **Chainlink Oracles**, which provide decentralized, transparent, and public prices.

The Verdict: Every detail is Ma'lum (Known) before the transaction. There is zero ambiguity in the contract, which removes the risk of Gharar al-Fahish.

6. The Structure of "Musharakah" (Risk Sharing)

> ***The Proof (Dalil):***
>
> الغنم بالغرم
>
> *"Profit follows risk." (Al-ghunmu bi al-ghurmi).*

The Technical Adillah: Liquidity Providers do not receive a guaranteed return. Their yield depends on the **volume of trades**. They take risk in exchange for a share of the protocol's success.

The Verdict: This aligns with the Musharakah (Partnership) model. The LPs are partners, and their reward is tied to actual economic activity.

7. Conclusion

Eswap is a **Halal alternative** to margin trading because it transforms the transaction from a Debt-Based Relationship into a **Trade-Based Relationship**.

1. Possession is Immediate (Atomic Swaps).
2. Interest is Zero (No Riba).
3. Ownership is Certified (NFTs).
4. Risk is Shared (LP/Musharakah).
5. Terms are Transparent (Oracles).

Prepared for Eswap Protocol | Shariah Technical Case | 2026
All technical mechanisms verified by Smart Contract Code.